

## 26STCV10040 26STCV10040

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-07-28

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No.

9 - Raylene Hermosillo v. Long Beach Ford LLC

Defendant

Long Beach Ford LLC's Motion to Compel Arbitration

Defendant

Long Beach Ford LLC moves to compel arbitration of Plaintiff Raylene Hermosillo's individual claims under the Private Attorneys General Act (PAGA) and stay the action pending arbitration. (See Viking River Cruises, Inc. v. Moriana (2022) 596 U.S. 639, 662-663 (Viking River); Adolph v. Uber Technologies, Inc. (2023) 14 Cal.5th 1104, 1113-1114 (Adolph) [discussing arbitrable "individual" PAGA claims and nonarbitrable representative or "non-individual" claims].)

Evidentiary

Objections

Plaintiff makes two objections to Defendant's evidence submitted in support of this motion. Both objections are overruled.

Individual

PAGA Claims

Plaintiff

opposes this motion largely on the basis that the complaint does not assert any "individual" or "non-representative" PAGA claims. Plaintiff framed the complaint that way. It alleges, "Plaintiff is not suing in her individual

capacity, only in her representative capacity on behalf of the State of California for all aggrieved employees. Nothing in this Complaint should be construed as Plaintiff suing in her individual capacity.” (Compl., ¶ 2; see also *id.*, ¶ 28.) The caption page states: “REPRESENTATIVE ACTION COMPLAINT FOR: CIVIL PENALTIES UNDER THE PRIVATE ATTORNEYS GENERAL ACT (“PAGA”).” (*Id.*, at p. 1.) The footer on each page also states, “REPRESENTATIVE ACTION COMPLAINT FOR CIVIL PENALTIES UNDER PAGA.” Defendant contends Plaintiff is asserting individual PAGA claims by bringing this action.

The parties identify conflicting opinions by the Court of Appeal on this subject. When “appellate decisions are in conflict,” the trial court “can and must make a choice between the conflicting decisions.” (*Auto Equity Sales, Inc. v. Superior Court of Santa Clara County* (1962) 57 Cal.2d 450, 456.) The Court considers these appellate decisions for their persuasive value. (See California Rules of Court, rule 8.1115(e)(1).) The Court will discuss the three relevant decisions in chronological order.

First, *Leeper v. Shipt, Inc.* (2024) 107 Cal.App.5th 1001 (*Leeper*), review granted Apr. 16, 2025, S289305, reversed a trial court order denying a motion to compel arbitration of an “individual” PAGA claim. The trial “court denied the motion on the basis that *Leeper*’s PAGA action did not allege any individual claims subject to arbitration under the parties’ arbitration agreement.” (*Id.* at p. 1005.) The Court of Appeal held, “[E]very PAGA action necessarily includes an individual PAGA claim.” (*Ibid.*) The court reached that conclusion “based on the unambiguous language in [Labor Code] section 2699, subdivision (a).” (*Id.* at p. 1009.)

The PAGA statute “describes a PAGA claim as ‘a civil action brought by an aggrieved employee on behalf of the employee and other current or former employees.’ ” (*Leeper*, *supra*, 107 Cal.App.5th at p. 1009.) The court reasoned, “The unambiguous and ordinary meaning of the word ‘and’ is conjunctive, not disjunctive. Thus, the clause ‘on behalf of the employee and other current or former employees’ [citation] means that the action described has both an individual claim component (plaintiff’s action on behalf of the plaintiff himself or herself) and a representative component (plaintiff’s action on behalf of other aggrieved employees).” (*Ibid.*, italics in original.)

Second, *Rodriguez v. Packers Sanitation Services Ltd., LLC* (2025) 109 Cal.App.5th 69 (*Rodriguez*), review granted May 14, 2025, S290182, disagreed with *Leeper* (*id.* at pp. 78-81 & fn. 5) in affirming an order denying the defendant's motion to compel arbitration. The Court of Appeal held, "If the plaintiff's complaint asserts no individual PAGA claim, there is no existing dispute over his or her right to obtain an individual PAGA remedy, and he or she cannot properly be ordered to arbitrate such a claim. Therefore, if on a motion to compel arbitration the court examines the complaint and determines it does not allege an individual PAGA claim, the court should decline to compel any such claim to arbitration." (*Id.* at p. 80.)

*Rodriguez* disagreed with *Leeper*, and "question[ed] *Leeper*'s interpretation of Labor Code section 2699, subdivision (a)." (*Rodriguez*, *supra*, 109 Cal.App.5th at p. 81, fn. 5.) But primarily, *Rodriguez* reasoned that "the *Leeper* court appeared to insert into the plaintiff's complaint a missing claim": an individual PAGA claim. (*Id.* at p. 80.) The court criticized *Leeper* for "construing Labor Code section 2699, subdivision (a) as requiring an individual PAGA claim, and not only declaring that the complaint 'necessarily' included such a claim but also requiring the plaintiff to arbitrate a claim she had never chosen to assert." (*Ibid.*)

Finally, *Galarsa v. Dolgen California, Inc.* (2025) 115 Cal.App.5th 1, 4 (*Galarsa*) review granted Dec. 17, 2025, S293545, affirmed a trial court order denying an employer's motion to compel arbitration on the basis that Labor Code section 2698 authorizes an aggrieved plaintiff to bring a PAGA action to recover civil penalties suffered only by other employees. In so holding, the appellate court criticized *Leeper*'s statutory interpretation analysis of PAGA as "overemphasiz[ing] the ordinary meaning of the statutory test (i.e., the letter of the law) and underemphasiz[ing] promoting PAGA's purposes." (*Id.*, at p. 11.) *Galarsa* considered multiple factors to come to its conclusion, including the legal landscape after the *Viking River* decision (*id.*, at pp. 11-12), the legislative history of the act (*id.*, at pp. 12-13), other secondary authorities (*id.*, at pp. 13-14), and PAGA's public policy of promoting worker protections (*id.*, at pp. 14-15).

The Court finds *Rodriguez* and *Galarsa* more persuasive than *Leeper*. The *Galarsa* court's emphasis on

promoting the underlying purposes of the PAGA statute is significant—and a point that the Leeper court did not analyze in depth.

Therefore, because the Court finds that the underlying action is only a representative PAGA action, there are no individual claims to compel to arbitration. The relief Defendant seeks is moot.

Disposition

Defendant Long Beach Ford LLC's motion to compel arbitration is denied.